

ELIZABETH II



1981 CHAPTER xxxi

An Act to empower the British Transport Docks Board to construct works and to acquire lands; to extend the time for the compulsory purchase of certain lands; to confer further powers on the Board; and for other purposes.
[30th October 1981]

WHEREAS—

(1) By the Transport Act 1962 the British Transport Docks 1962 c. 46. Board (in this Act referred to as “ the Board ”) were established:

(2) It is the duty of the Board under the said Act of 1962 (inter alia) to provide, to such extent as they may think expedient, port facilities at the harbours (as defined by the said Act) owned or managed by the Board and to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by them and the Board are empowered to operate the harbours owned or managed by them:

(3) It is expedient that the Board should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

(4) It is expedient that the period now limited for the compulsory purchase of certain lands should be extended as provided by this Act:

(5) It is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

(6) A plan and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and a plan of the lands authorised to be acquired or used by this Act, and a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands have been deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the proper officer of the county council of the county within which the said works will be constructed or the said lands are situated, which plan, sections and book of reference are respectively referred to in this Act as the deposited plan, the deposited sections and the deposited book of reference:

(7) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the British Transport Docks Act 1981.

Interpretation. 2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—

1847 c. 27. “the Act of 1847” means the Harbours, Docks and Piers Clauses Act 1847;

1964
c. xxxviii. “the Act of 1964” means the British Transport Docks Act 1964;

1966 c. xxxi. “the Act of 1966” means the British Transport Docks Act 1966;

1967 c. xxxi. “the Act of 1967” means the British Transport Docks Act 1967;

- “ the Act of 1969 ” means the British Transport Docks Act 1969; PART I
—cont.
1969 c. xxiii.
- “ the Act of 1971 ” means the British Transport Docks Act 1971; 1971 c. lix.
- “ the Act of 1973 ” means the British Transport Docks Act 1973; 1973 c. xiii.
- “ the Act of 1976 ” means the British Transport Docks Act 1976; 1976 c. xvii.
- “ the Act of 1978 ” means the British Transport Docks Act 1978; 1978 c. xiv.
- “ the Board ” means the British Transport Docks Board;
- “ land ” includes any estate or interest in land and land covered by water;
- “ the level of high water ” means the level of mean high-water springs;
- “ the limits of deviation ” means the limits of deviation shown on the deposited plan;
- “ tidal work ” means so much of any work authorised by this Act as is on, under or over tidal waters or tidal lands below the level of high water;
- “ the undertaking ” means the undertaking of the Board as authorised from time to time;
- “ vessel ” has the meaning assigned to it in section 3 (Interpretation) of the Act of 1966;
- “ the works ” means the works authorised by Part III (Works, etc.) of this Act.

(2) All areas, directions, distances, lengths and widths stated in any description of works, powers or lands shall be construed as if the words “ or thereabouts ” were inserted after each such area, direction, distance, length and width.

(3) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

PART I
—cont.
Incorporation
of general
Acts.
1845 c. 20.

3.—(1) The following enactments, so far as the same are applicable to the purposes and are not inconsistent with the provisions of this Act, are hereby incorporated with this Act:—

- (a) the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and with respect to mines lying under or near the railway:

Provided that—

(i) for the purposes of the said incorporated provisions with respect to the temporary occupation of lands near the railway during the construction thereof, the works shall be deemed to be the railway and the centre line of each work as shown on the deposited plan shall be deemed to be the centre of the railway and for the words “the period by the special Act limited for the completion of the railway” there shall be substituted the words “the period of five years from the commencement of the construction of any of the works authorised by the special Act”;

1923 c. 20.

(ii) for the purposes of the said incorporated provisions with respect to mines lying under or near the railway, the works shall be deemed to be the railway and, for the purposes of section 78 of the said Act of 1845 (as amended by the Mines (Working Facilities and Support) Act 1923) in so far as it relates to the works, the area of protection shall, as regards mines and minerals lying within 172·21 metres of the surface of the ground or the bed of the river Humber be 121·92 metres and, as regards mines and minerals lying at a greater depth than 172·21 metres below the said surface, the area of protection shall be increased by 18·3 metres for every 30·48 metres or part thereof by which the mines and minerals lie deeper below the said surface than 172·21 metres;

- (b) the provisions of the Act of 1847 (except sections 6 to 9, 11 to 13, 16 to 23, 25, 26, 49, 50, 79, 80, 84 to 90, 94, 95, 97 and 98):

Provided that—

(i) the expression “the harbour, dock, or pier” where used in the said incorporated provisions means the works;

(ii) the expression “the harbour master” where used in the said incorporated provisions means the Board’s Dock Master at Grimsby;

(iii) the meaning of the word "vessel" as defined in this Act shall be substituted for the meaning assigned to it by section 3 of the Act of 1847; and

PART I
—cont.

(iv) section 53 of the Act of 1847 shall not be construed as requiring the harbour master to serve upon the master of a vessel a notice in writing of his directions but such directions may be given orally or otherwise communicated to such master:

Provided that a notice which is not in writing shall not be deemed to be sufficient unless in the opinion of the court before which any case may be heard it was not reasonably practicable to serve a written notice on the master of the vessel.

(2) In the construction of the enactments so incorporated with this Act, the expression "special Act" shall be read as a reference to this Act and the expression "company" shall mean the Board.

4.—(1) Part I of the Compulsory Purchase Act 1965 (except sections 4 and 27 thereof and paragraph 3(3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 applies and as if this Act were a compulsory purchase order under the said Act of 1946.

Application of Part I of Compulsory Purchase Act 1965.

1965 c. 56.

1946 c. 49.

(2) In section 11 (1) of the Compulsory Purchase Act 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving not less than fourteen days' notice), as so applied, for the words "fourteen days" there shall be substituted the words "three months".

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

1845 c. 18.

PART II

LANDS

5.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plan and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to the undertaking.

Power to acquire lands.

(2) The powers of the Board for the compulsory acquisition of land under this section shall cease after the expiration of five years from 31st December 1981.

PART II
—*cont.*
Compulsory
acquisition
of rights
over land.

6.—(1) In this section “new rights” in relation to any land means easements or other rights over such land which are not in existence at the passing of this Act.

(2) The Board may for the purposes of constructing, using, maintaining, renewing or removing the works, or for the purpose of obtaining access to the works or for the purpose of doing any other thing necessary in connection with the works, purchase compulsorily such new rights as they may require over any of the lands which may be acquired under section 5 (Power to acquire lands) of this Act instead of acquiring those lands under that section.

1965 c. 56.

(3) The Compulsory Purchase Act 1965, as applied by this Act, shall have effect with the modifications necessary to make it apply to the compulsory purchase of rights under subsection (2) of this section as it applies to the compulsory purchase of land so that, in appropriate contexts, references in the said Act of 1965 to land are read as referring, or as including references, to the rights or to land over which the rights are or are to be exercisable, according to the requirements of the particular context.

(4) Without prejudice to the generality of subsection (3) of this section, in relation to the purchase of rights in pursuance of subsection (2) of this section—

(a) Part I of the Compulsory Purchase Act 1965 shall have effect with the modifications specified in the Schedule to the Act of 1978 and as if for the references in that Schedule to the Act of 1978 there were substituted references to this Act;

(b) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

Incorporation
of provisions
relating to
lands.

7. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1964—

Section 6 (Correction of errors in deposited plans and book of reference);

The Act of 1969—

Section 8 (Disregard of recent improvements and interests); and

Section 9 (Extinction of private rights of way).

PART III
WORKS, ETC.

8.—(1) Subject to the provisions of this Act, the Board may, in the lines and situations and within the limits of deviation shown on the deposited plan and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

Partly in the borough of Great Grimsby in the county of Humberside and partly on the foreshore and bed of the river Humber—

Works at Grimsby Docks—

Work No. 1 A retaining wall and quay wall commencing at the retaining wall of the tidal basin of Royal Dock at a point 47 metres east-north-east of the eastern outer knuckle of the disused entrance lock of Royal Dock and extending for 59 metres in a south-south-easterly direction, thence for 12 metres in a south-south-westerly direction, thence for 20 metres in an east-south-easterly direction, thence for 12 metres in a north-north-easterly direction, thence for 6 metres in an east-north-easterly direction, thence for 87 metres in a north-north-easterly direction, thence for 97 metres in an east-south-easterly direction and terminating at the West Pier of the entrance to the Fish Docks at a point 38 metres from its seaward extremity. (Retaining wall and quay wall)

Work No. 2 A terminal comprising a bridge ramp and portal commencing at a point 50 metres south-south-west of the mid-point of that part of Work No. 1 which extends for 20 metres in an east-south-easterly direction and extending for 60 metres in a north-north-easterly direction and there terminating. (Terminal comprising bridge ramp with portal)

Work No. 3 A line of dolphins with connecting walkways commencing at Work No. 1 at a point 90 metres from its termination and extending for 120 metres in a north-north-easterly direction and terminating at the seaward extremity of the East Pier of the tidal basin of Royal Dock. (Dolphins with connecting walkways)

Work No. 4 A bund commencing at Work No. 1 at a point 45 metres from its termination and extending for 97 metres in a north-north-easterly direction, thence for 37 metres in a north-westerly direction. (Bund)

PART III
—cont.

direction, thence for 12 metres in a west-north-westerly direction and terminating at the termination of Work No. 3.

(2) Subject to the provisions of this Act, the Board may within the limits of deviation from time to time extend, enlarge, alter, replace or relay temporarily or permanently the works.

(3) The Board may fill in and reclaim and may hold and use as part of the undertaking so much of the foreshore and bed of the river Humber as is situated within the limits of deviation and is landward of Work No. 1.

Power to
dredge.

9. The Board may from time to time deepen, dredge, scour, cleanse, alter and improve the bed, shores and channels of the river Humber—

- (a) within the area delineated on the deposited plan as being the limit of dredging, for the purpose of enabling the works to be used at all states of the tide; and
- (b) adjoining or near to the works for the purpose of affording uninterrupted means of access thereto;

and may (subject to the consent required by section 30 (Crown rights) of the Act of 1966, as incorporated with this Act) as they think fit use, appropriate or dispose of the materials from time to time taken up or collected by them from the river Humber in the course of any such operations:

Provided that—

- (i) no such materials shall be deposited below the level of high water except in such places and in accordance with such conditions and restrictions as may be approved or prescribed by the Secretary of State;
- (ii) the power to use, appropriate or dispose of materials shall not extend to wreck (within the meaning of Part IX of the Merchant Shipping Act 1894) found by the Board.

1894 c. 60.

Limits of
jurisdiction
of Board's
Dock Master
at Grimsby.

10. The limits within which the powers of the Board's Dock Master at Grimsby in relation to the works may be exercised under and subject to the provisions of the Act of 1847, as incorporated with this Act, shall extend to a distance of 600 metres in every direction from the works.

Works to
form part of
undertaking.

11. The works shall for all purposes form part of the undertaking.

Application
of byelaws of
Board.

12. All byelaws, rules and regulations of the Board in force at Grimsby Docks immediately before the passing of this Act shall, unless the Board shall otherwise determine, be deemed to apply to the works and may be enforced by the Board accordingly until

such time as new byelaws, rules or regulations relating to the works or any of them shall be made by the Board and come into operation.

PART III
—cont.

13.—So much of the works as is beyond low water shall be deemed to be within—

Works to be within county of Humberside, etc.

- (a) the county of Humberside;
- (b) the borough of Great Grimsby; and
- (c) the petty sessional division of Grimsby borough.

14.—(1) The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation of provisions relating to works.

The Act of 1964—

Section 30 (Fine for obstructing works):

The Act of 1966—

Section 9 (Subsidiary works);

Section 10 (Power to deviate);

Section 21 (Tidal works not to be executed without approval of Board of Trade);

Section 23 (Abatement of works abandoned or decayed);

Section 24 (Survey of tidal works); and

Section 26 (Lights on tidal works during construction):

The Act of 1969—

Section 17 (Provision against danger to navigation):

The Act of 1971—

Section 16 (Permanent lights on works):

Provided that—

- (a) the provisions of the said section 9, as so incorporated, shall have effect as if in the proviso to subsection (1) the words after “those works” were omitted; and
- (b) the provisions of the said sections 26, 17 and 16, as so incorporated, shall have effect as if in subsection (2) of each of those sections for the words “one hundred pounds” there were substituted “the statutory maximum”.

(2) Any reference in the said incorporated provisions to “the works” or to a “tidal work” shall be construed as a reference to “the works” or to a “tidal work” as defined in section 2 (Interpretation) of this Act.

(3) Notwithstanding anything in the said section 9 of the Act of 1966, as so incorporated, the Board shall not—

PART III
—*cont.*

(a) use any telegraphic line belonging to or used by British Telecommunications; or

(b) alter any such line except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act 1878.

1878 c. 76.

(4) In this section “alter” and “telegraphic line” have the same meanings as in the Telegraph Act 1878 and “the statutory maximum” means the prescribed sum as defined in section 32 (9) of the Magistrates’ Courts Act 1980.

1980 c. 43.

PART IV

PROTECTIVE PROVISIONS

Crown rights.

15. The provisions of section 30 (Crown rights) of the Act of 1966 are incorporated with, and form part of this Part of, this Act.

PART V

FINES AND PENALTIES

Interpretation
of Part.

16. In this Part of this Act, unless the context otherwise requires “the harbour” means any harbour, dock or pier undertaking from time to time owned, managed or leased by the Board and includes the docks, canals, piers, wharves, quays, bridges, and other works and conveniences and the lands and buildings, hereditaments and property of every description and of whatever nature of or at any time vested in or belonging to the Board comprising such undertaking; and “the Board’s harbours” shall be construed accordingly.

Increase of
penalties under
Harbours,
Docks and
Piers Clauses
Act 1847.

1847 c. 27.

17.—(1) In their application to the Board’s harbours the provisions of the Act of 1847 specified in column (1) of Schedule 1 to this Act (being sections creating the offences broadly described in column (2) of that Schedule) shall each have effect as if the maximum penalty which may be imposed on summary conviction of any offence specified in the section were a penalty not exceeding the amount specified in column (4) of that Schedule instead of a penalty of, or not exceeding, the amount specified in column (3) of that Schedule.

(2) Section 53 of the Act of 1847 in its application to the Board’s harbours shall have effect as if at the end of the section there were inserted the words “and a further sum not exceeding £20 for each day following the service of the notice on which the master continues to make default in complying with such direction”.

18. Section 54 (General provisions as to byelaws) of the Act of 1964 shall have effect as if in subsection (2) thereof for the words "twenty-five pounds" and "five pounds" respectively there were substituted "£200" and "£20".

PART V
—cont.

Amendment
of section 54
of Act of
1964.

19.—(1) This subsection applies to the byelaws which are described or identified in column (1) of Schedule 2 to this Act and were made under the enactments specified in column (2) of that Schedule.

Increase of
fines for
offences
against
byelaws.

(2) This subsection applies to any byelaws (other than those to which subsection (1) of this section applies) which—

- (a) were in force immediately before the passing of this Act in relation to the parts of the undertaking referred to in column (1) of Schedule 3 to this Act;
- (b) were made under the enactments mentioned in column (2) of that Schedule, being enactments applying to or affecting those parts of the undertaking; and
- (c) impose, or in relation to which there is imposed, a fine or a maximum fine of less than £50.

(3) In place of the existing maximum fine the maximum fine which may be imposed on summary conviction of an offence—

- (a) under any byelaw to which subsection (1) of this section applies shall be £200; and
- (b) under any byelaw to which subsection (2) of this section applies, £50;

and in addition, where a daily or hourly fine may be imposed, the maximum shall be £20 in the case of a byelaw to which subsection (1) applies and £5 in the case of a byelaw to which subsection (2) applies for each day or hour, as the case may be, on which the offence continues after conviction thereof.

20. Nothing in this Part of this Act shall affect the length of the term of imprisonment which may be awarded, or the amount of the fine which may be imposed, on conviction of an offence committed before the passing of this Act.

Saving for
offences
committed
before passing
of Act.

PART VI

MISCELLANEOUS AND GENERAL

21.—(1) The period now limited by the Act of 1976 for the compulsory purchase of—

Extensions
of time.

- (a) the lands authorised to be acquired by section 6 (Power to acquire lands) of the Act of 1967 for the purposes of Work No. 6 authorised by Part III (Works, etc.) of the Act of 1967; and

PART VI
—cont.

(b) the lands authorised to be acquired by section 6 (Power to acquire lands) of the Act of 1973 for the purposes of Work No. 1 authorised by Part III (Works, etc.) of the Act of 1973;

is hereby extended until 31st December 1986.

(2) The powers for the compulsory purchase of the lands referred to in subsection (1) of this section shall cease on the date therein mentioned except in so far as any such powers shall by then have been exercised.

Powers of
police as to
search and
arrest.
1962 c. 46.
1949 c. xxix.

22. In its application to the Board pursuant to the provisions of Part III of the Second Schedule to the Transport Act 1962, subsection (3) of section 54 (Powers of police as to search and arrest) of the British Transport Commission Act 1949 in relation only to subsection (1) of that section, as amended by section 10 (Powers of police as to search and arrest) of the Act of 1976, shall have effect as if for the words "one thousand nine hundred and eighty-two" there were substituted "1985".

Planning
permission.
S.I. 1977/289.

23.—(1) In this section "Class XII development" means development authorised by Article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1977 (which permit development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out).

(2) Subject to the provisions of subsection (3) of this section, in its application to development authorised by this Act, the planning permission granted for Class XII development shall have effect as if the authority to develop given by this Act were limited to development begun within 10 years after the passing of this Act.

(3) Subsection (2) of this section shall not apply to the carrying out of any development consisting of the alteration, maintenance or repair of works or the substitution of new works therefor.

Arbitration.
1965 c. 56.

24. Where under this Act any difference (other than a difference to which the provisions of the Compulsory Purchase Act 1965, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers.

Costs of
Act.

25. All costs, charges and expenses of, and incidental to, the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

Section 17.

INCREASE OF PENALTIES UNDER THE HARBOURS, DOCKS AND PIERS
CLAUSES ACT 1847

1847 c. 27.

Provision (1)	Description of offence (2)	Old penalty or maximum penalty (3)	New maximum penalty (4)
Section 28	Unjustified claims for exemption from harbour rates.	£50	£200
Section 35	Failure of master to report arrival of a vessel.	£25	£200
Section 36	Failure of master to produce certificate of registry.	£50	£200
Section 38	Failure of master to give account, or master giving false account of cargo unshipped.	£50	£200
Section 39	Failure of shipper to give account, or shipper giving false account of cargo shipped.	£50	£200
Section 53	Default by master in complying with direction of harbour master.	£50	£200 and in addition £20 for each day following the service of notice or on which default continues.
Section 55	Offering of bribes to officers and acceptance of bribes by officers.	£50	£200
Section 59	Failure to dismantle vessel.	£25	£200
Section 60	Failure to lower sails when entering dock.	£25	£200
Section 61	Failure to furnish or fix hawsers, etc., to moorings.	£25	£200
Section 62	Wilful cutting of moorings.	£25	£200
Section 63	Placing of vessel near the entrance of harbour, etc., without permission.	£25 and in addition £1 for each hour that the vessel remains within the prescribed limits.	£200 and in addition £20 for each hour that the vessel remains within the prescribed limits.
Section 64	Failure to remove vessel for purpose of enabling repair, etc., of harbour, etc.	£25	£200

SCH. 1
—cont.

Provision (1)	Description of offence (2)	Old penalty or maximum penalty (3)	New maximum penalty (4)
Section 66	Failure to remove vessel after discharge of cargo.	£25	£200
Section 69	Failure to move combustible matter from quays, etc.	£2 for each hour that the matter remains on the quay.	£50 for each hour that the matter remains on the quay.
Section 71	Commission of miscellaneous offences in relation to fires, combustible or explosive matter and firearms.	£25	£200
Section 72	Obstruction of harbour master while engaged in searching for, etc., fires or lights.	£25	£200
Section 73	Throwing of ballast, etc., into harbour.	£25	£200

Section 19.

SCHEDULE 2

INCREASE OF FINES TO £200 FOR OFFENCES AGAINST BYELAWS

	(1) Byelaws	(2) Enactment
1847 c. 27.	Alexandra Docks and Town Dock Newport General Byelaws 1923, byelaws 10 (Vessels not to remain outside dock gates), 13 (Mooring vessels out of berths), 17 (Navigation of steamers), 23 (Repairing vessels), 27 (Smoking), 30 (Anchors not to be left in approach to dock), 36 (Loitering about docks) and 43 (Hatchways of colliers).	The Harbours, Docks & Piers Clauses Act 1847, section 83.
	Barry Docks Byelaws 1923, byelaws 10 (Regulations as to vessels within the docks), 11 (Berthing), 12 (Vessels to be moored where directed by dock-master or staith-master), 22 (Loosening, cutting, etc., of vessels' mooring), 30 (Dogs), 31 (Dogs to be muzzled and not allowed in water of dock) and 67 (No loitering, etc., on dock area).	The Harbours, Docks & Piers Clauses Act 1847, section 83.
	Bute Docks Byelaws 1923, byelaws 8 (Entrance channel to be kept clear), 10 (Berthing), 11 (Berthing), 12 (Navigation by steam in dock forbidden without permission), 16 (Casting off of vessels), 18 (Repairing of vessels), 19 (Hatchway of vessels carrying coal), 24 (Dogs on vessels), 36 (Smoking within dock area, etc.), 74 (Anchor left in or near entrance of channel for 12 hours or more) and 78 (No loitering).	The Harbours, Docks & Piers Clauses Act 1847, section 83.

(1) Byelaws	(2) Enactment	SCH. 2 —cont.
Goole Docks Byelaws 1912, byelaws 19 (Master of vessel containing inflammable material to give harbour master notice of vessel registration, name, etc., in writing and to unload cargo as directed), 20 (No inflammable goods to be brought onto dock without harbour master's permission) and 46 (No dogs in docks, on board vessels, etc.).	Ouse (Lower) Improvement Act 1884, section 46.	1884 c. clxi.
Grimsby Docks Byelaws 1939, byelaws 58 (Discharge of firearms, etc.) and 62 (Dogs and animals).	The Harbours, Docks & Piers Clauses Act 1847, section 83.	1847 c. 27.
Hull Docks Byelaws 1927, byelaw 59 (Dogs and animals).	The Harbours, Docks and Piers Clauses Act 1847, section 83.	
Humber and Lower Trent Navigation Byelaws 1956, byelaws 19 (No vessel to anchor in fairway unless in emergency conditions), 33 (Owner or master of vessel sunk or stranded in river, etc., to inform Clerk to Board) and 34 (When vessel collides with light or wreck marking vessel fact to be reported).	Humber Conservancy Act 1899, 1899 c. cci. section 10.	
Immingham Dock Byelaws 1929, byelaws 43 (Fire, etc.), 44 (Smoking), 48 (Loitering, etc.), 58 (Discharge of firearms, etc.) and 62 (Dogs and animals).	The Harbours, Docks & Piers Clauses Act 1847, section 83.	
Lower Ouse Byelaws 1912, byelaws 13 (Master to report vessel sunk, damaged, etc., if causing an obstruction to harbour master), 17 (Master of a vessel to obey harbour master's orders), 18 (Every pier, jetty, etc., on river to be lighted for navigational purposes, etc.) and 19 (Landing places submerged at high water to be lit by night).	Ouse (Lower) Improvement Act 1884, section 46.	
Port Talbot Docks Byelaws 1923, byelaws 7 (No obstruction of the entrance channel), 77 (No loitering), 84 (Anchors in or near entrance forbidden) and 95 (Dogs).	The Harbours, Docks & Piers Clauses Act 1847, section 83. Port Talbot Railway & Docks Act 1894, section 139.	1894 c. cxli.
Salt End Jetties and Hedon Haven Byelaws 1934, byelaws 28 (Fire, etc.), 29 (Smoking), 32 (Trespass, etc.), 39 (Permission necessary before carrying out repair work) and 45 (Dogs and animals).	The Harbours, Docks & Piers Clauses Act 1847, section 83.	
Southampton Harbour Board Byelaws 1894, byelaw 19 (Interference with lights).	The Harbours, Docks & Piers Clauses Act 1847, section 83.	

SCH. 2 —cont.		
	(1) Byelaws	(2) Enactment
1847 c. 27.	Southampton Harbour Board Additional Byelaws 1903, byelaw 1 (Speed restriction on vessels).	The Harbours, Docks & Piers Clauses Act 1847, section 83.
1919 c. xviii.	Swansea Harbour Byelaws 1924, byelaws 13 (Mooring vessels prohibited in fairway), 18 (Harbour Master's directions for mooring, etc., vessels to be followed), 20 (Hatches of coal-laden vessels to remain open while vessels in dock), 24 (Fires), 34 (No loitering), 39 (No destruction of mooring ropes, etc., of other vessels) and 40 (No smoking).	Swansea Harbour Act 1919, section 11.

Section 19.

SCHEDULE 3

INCREASE OF FINES TO £50 FOR OFFENCES AGAINST BYELAWS

PART I

BYELAWS MADE UNDER HARBOURS, DOCKS
AND PIERS CLAUSES ACT 1847

	(1) Dock, harbour or location	(2) Enactment
	Cardiff Docks, Newport Docks, Plymouth (Millbay) Docks, Southampton Docks.	The Harbours, Docks and Piers Clauses Act 1847, sections 83 and 84.
1930 c. cxlii.	King's Lynn Docks 	The Harbours, Docks and Piers Clauses Act 1847, section 83, and Pier and Harbour Orders Confirmation (No. 2) Act 1930 (King's Lynn Docks and Railway (Quay) Order 1930, section 19).

PART II

1964 c. xxxviii. BYELAWS MADE UNDER BRITISH TRANSPORT DOCKS ACT 1964

	(1) Dock, harbour or location	(2) Enactment
	Barry Docks, Fleetwood Docks, Grimsby Docks, Hull Docks, Immingham Dock, King's Lynn Docks, Lowestoft Harbour, Newport Docks, Plymouth (Millbay) Docks, Swansea Docks.	British Transport Docks Act 1964, sections 52 and 54 (2).

PART III

BYELAWS MADE UNDER LOCAL ACTS

SCH. 3
—cont.

(1) Dock, harbour or location	(2) Enactment
Grimsby Docks	Manchester, Sheffield and Lincolnshire Railway Act 1896, section 45. 1896 c. ccvii.
King's Lynn Docks	King's Lynn Docks and Railway Act 1865, section 74, and Pier and Harbour Orders Confirmation (No. 2) Act 1930 (King's Lynn Docks and Railway (Quay) Order 1930, section 19). 1865 c. lxxxviii.
Lower Ouse Improvement and Goole Docks	Ouse (Lower) Improvement Act 1884, 1884 c. clxi. sections 46 and 55.
Port Talbot Docks	Port Talbot Railway and Docks Act 1894, section 139. 1894 c. cxli.
River Humber	Humber Conservancy Act 1899, 1899 c. cci. section 10.
	Humber Conservancy Act 1907, 1907 c. xcvi. section 99.
Southampton Docks	Southampton Docks Act 1871, 1871 c. cxxx. section 59.
Swansea Docks	Swansea Harbour Act 1919, 1919 c. xviii. section 11.

— 22 —

PRINTED IN ENGLAND BY OYEZ PRESS LIMITED
FOR W. J. SHARP

Controller and Chief Executive of Her Majesty's Stationery Office and
Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

£2.30

ISBN 0 10 513181 4



British Transport Docks Act 1981

CHAPTER xxxi

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Interpretation.
3. Incorporation of general Acts.
4. Application of Part I of Compulsory Purchase Act 1965.

PART II

LANDS

5. Power to acquire lands.
6. Compulsory acquisition of rights over land.
7. Incorporation of provisions relating to lands.

PART III

WORKS, ETC.

Section

8. Power to make works.
9. Power to dredge.
10. Limits of jurisdiction of Board's Dock Master at Grimsby.
11. Works to form part of undertaking.
12. Application of byelaws of Board.
13. Works to be within county of Humberside, etc.
14. Incorporation of provisions relating to works.

PART IV

PROTECTIVE PROVISIONS

15. Crown rights.

PART V

FINES AND PENALTIES

16. Interpretation of Part.
17. Increase of penalties under Harbours, Docks and Piers Clauses Act 1847.
18. Amendment of section 54 of Act of 1964.
19. Increase of fines for offences against byelaws.
20. Saving for offences committed before passing of Act.

PART VI

MISCELLANEOUS AND GENERAL

21. Extensions of time.
22. Powers of police as to search and arrest.
23. Planning permission.
24. Arbitration.
25. Costs of Act.

SCHEDULES:

Schedule 1—Increase of penalties under the Harbours, Docks and Piers Clauses Act 1847.

Schedule 2—Increase of fines to £200 for offences against byelaws.

Schedule 3—Increase of fines to £50 for offences against byelaws.